

CODE

Spending and contracts

Draft for member review | 29 September 2026

Plain language summary

Two signatures under \$2,500, a resolution over \$25,000, public notice over \$100,000, and a member vote over \$500,000. One signature should not commit the First Nation. The amounts are draft figures members can change before a vote.

Working draft. Amounts are proposals. Section 83 approval is separate if this is to be a money by-law. Laws cited were read on the Justice Canada consolidations current to 21 September 2026, the Charter and Constitution Act, 1982 consolidation, and the Treaty No. 8 text published by Crown-Indigenous Relations and Northern Affairs Canada. This draft is not a legal opinion.

Part 1. Purpose

1.1 This instrument sets who may commit the First Nation's money. The amounts are the amounts in this draft. They are not a statement of any current practice. Electors may change an amount under the amendment rule before they adopt the instrument.

1.2 If council also wants this text to be a money by-law, Indian Act section 83 applies, including Ministerial approval. Constitution section 5.4 is the path. Until that approval, this instrument binds office holders and employees as a condition of office.

Part 2. Thresholds

2.1 A commitment of money must meet this table before anyone signs. A commitment that skips a row is void. The person who signed must not sign another commitment until the void one is reversed or repaid. Repayment is due within 30 days.

Amount	Who must act before the commitment	Deadline
Under \$2,500, inside an adopted budget line	Two signatures. One must be the finance officer. Neither may be the person receiving the money.	Same day as the commitment. Both names on the voucher.
\$2,500 to \$25,000	The two signatures, plus a written note of what was bought and which budget line.	Note filed the same day. If not filed, the finance officer must refuse payment.
Over \$25,000 to \$100,000	A council resolution passed before the commitment, at a meeting that met the procedure instrument.	Resolution posted before anyone signs the contract.
Over \$100,000 to \$500,000	The resolution, plus public notice of the proposed contract.	Notice posted at least 14 days before signing.
Over \$500,000	The resolution, plus a member vote: a majority of votes cast, with at least 25 percent of electors voting.	21 days' notice of the vote. No signing before the posted count.

2.2 A payment already listed, with its amount, in a budget the electors approved under section 2.3 may be paid without a second member vote. It still needs the signatures and, over \$25,000, the resolution.

2.3 Electors may approve a full budget at a meeting called on 21 days' notice. Approval is a majority of votes cast, with at least 25 percent of electors voting. If that vote does not happen, section 2.1 still applies, and the over \$500,000 row is not waived.

Part 3. Cards, family contracts, and tenders

3.1 There is no card in one person's name with a limit above \$2,500 in a month. The finance officer must reconcile every card within 15 days of the statement date. A charge with no receipt by that day is a debt of the cardholder, due within 30 days. The card is cancelled on day 16 if the reconciliation is late, and the appeal body is told the same day.

3.2 A contract with a councillor, the chief, an employee who can spend, or their immediate family is prohibited unless all of these happen first: the person leaves the decision, the appeal body approves the contract in writing, and the contract is posted for 14 days. If any step is skipped, the contract is void and payments must stop within 2 days. Sums already paid must be repaid within 30 days unless the appeal body finds the First Nation received fair value and the member vote under the over \$25,000 rule ratifies it within 60 days.

3.3 A contract over \$25,000 must be offered in a written invitation posted for 14 days, unless the appeal body certifies in writing that there is only one practicable supplier, with reasons, before signing. A false certification removes the person who signed it from spending authority for the rest of the term.

Part 4. What members can see

4.1 The finance officer must post a contract list every month, within 15 days after month end: the other party, the amount, the budget line, and the resolution number. Names of members receiving a personal program payment are not posted. The amount and the program name are posted. A late list stops new commitments over \$2,500 until it is posted.

Part 5. Amendment

5.1 Council must not amend this spending instrument by resolution. A resolution that purports to amend it is void on the day it is signed. The appeal body must post that fact within 14 days.

5.2 An amendment passes only if a majority of the votes cast are yes and at least 25 percent of the electors cast a ballot.

5.3 The electoral officer must post the full proposed text at least 30 days before the vote. A vote held on shorter notice is void.

5.4 An amendment that removes or weakens a spending limit, a signature rule, a ban on voting on one's own pay, honorarium, travel, or contract, publication of financial statements or the remuneration schedule, a term limit, the fixed election date, the conflict register, a recusal rule, a right-to-information deadline, the whistleblower channel to the appeal body, the independence of the appeal body, or the rule that members, not council alone, amend a law does not pass under 5.2. It passes only if a majority of all electors vote yes. If that count is not met, the amendment is void.

5.5 The electoral officer must post the count within 3 days.

Part 6. Review and coming into force

6.1 The appeal body must review this spending instrument every 4 years, counted from the day it comes into force, and must post a written report within 60 days after that anniversary. The report does not amend this spending instrument.

6.2 Within 90 days of that report, council must either put a recommended amendment to the electors under Part 5, or post written reasons for not doing so. If council does neither, the appeal body must post that omission on day 91, and council honoraria stop on day 91 until one of those two things is done.

6.3 this spending instrument comes into force on the day after the electors approve it under Part 5. Until that day it is a draft. It does not repeal an election code, by-law, or policy already in force.

6.4 Where a law already in force sets its own replacement rule, this spending instrument replaces that law only if the electors also meet that rule. A lawyer should compare the two texts before the vote.

6.5 The records officer must keep the adopted text posted for at least 10 years. If it is not posted by day 10 after the vote, the records officer must post a written reason that day, and the appeal body must appoint a replacement records officer within a further 10 days.

This is not a legal opinion. A lawyer, or a person whose work is First Nation governance, should review this draft before members vote. A by-law that conflicts with the Indian Act, the Criminal Code, or another federal law is of no effect to the extent of the conflict. Police and Crown prosecution of a band by-law is uneven. The Minister's steps under the First Nations Financial Transparency Act, section 13, are discretionary. The consequences in this instrument are internal for that reason.